

EBS_PITCH_DECK_20260824

PITCH — EBS — VERDICT

PROPOSED — PENDING ADJUDICATION — no position, no orders; both internal review teams landed on FLAT, but for opposite reasons, and the team that wanted to reject had its central argument refuted by our own second team.

What we believe

Emergent BioSolutions makes medical countermeasures the U.S. government buys — smallpox vaccine (ACAM2000), anthrax (CYFENDUS), botulism antitoxin (BAT), Ebola therapy (Ebanga) — plus the consumer naloxone franchise (NARCAN). The government business just had a very large quarter (\$168.0M vs \$58.4M a year ago); the consumer business is being destroyed by generic and OTC competition (naloxone \$52.4M vs \$67.5M, -22.4%, with a \$191.3M writedown taken and only \$81.9M of carrying value left).

The stock is \$5.11–5.18, down 63% from its 52-week high of \$14.06 and 19% off its \$4.36 low. Market value is about \$262M. But the company carries \$589.7M of gross debt against \$139.7M of cash, so the *enterprise* is valued around \$712M — meaning debt is roughly 63% of the capital structure and the equity is a thin slice on top of it.

What we believe, stated as arithmetic rather than narrative: at the September 30 covenant test date, trailing-twelve-month adjusted EBITDA is already about \$143M (Q4'25 \$11.2M + Q1'26 ~\$35.5M + Q2'26 \$96.5M) *before Q3 contributes anything*. At \$5.11 the enterprise trades at almost exactly **5.0x** that number. So today's price pays for the business staying exactly where it is — no growth, no decline. The bet, if we ever make it, is that the government contract book is a durable multi-year annuity being valued as a one-quarter fluke, and that the naloxone collapse is now fully in the numbers rather than still coming.

We do not yet believe this strongly enough to buy it. We believe it strongly enough that “reject and forget” was the wrong answer.

What the market believes

The market believes this is a melting ice cube with too much debt on it. Specifically:

- **The consumer franchise is going to zero.** Two competing naloxone products arrived inside 60 days — Rextovy cleared for over-the-counter sale on 2026-06-16 ([FDA](#)) and Rezenopy launched 2026-08-12. The market is extrapolating the -22% year-over-year decline forward.
- **The government quarter was a pull-forward, not a run-rate.** A jump from \$58.4M to \$168.0M invites the reading that deliveries were pulled into the quarter and the next few quarters

will be empty.

- **The credit is not investment grade and everyone knows it.** In April 2026 the company refinanced into a \$150M OrbiMed term loan at roughly SOFR+625 (about 10.5%), secured by *both* first and second liens, with a \$75M delayed-draw feature, and paid \$11.5M in issuance/extinguishment costs to do it. It also let its revolver be cut from \$100M to \$50M. That is specialty-lender pricing. It is the market's stated opinion that the \$439.7M of 3.875% notes due 2028 will not refinance at par.
- **The guide was cut.** Full-year adjusted EBITDA guidance went to \$130–150M eighteen days ago.

And the market has bet real money on this view: **20.52% of the float is sold short, at 14.97 days to cover on 1.38M shares of average daily volume.** That is a heavily, publicly, expensively held bear position.

Why we might have edge

Four things, in descending order of how much I trust them:

1. **The pull-forward story appears to be false, and we can see it from orbit.** We looked at thermal output at all three manufacturing sites (Canton, Lansing, Winnipeg). If Q2's \$168M had been a pull-forward — deliveries yanked into the quarter from later ones — you would expect plants to go quiet afterward. They did not. Excess heat readings were 5.3 / 4.6 / 4.5 °C above baseline, with trends of +0.21, −0.26, and +1.30 °C-per-year. Winnipeg is heating up sharply. There is no synchronized post-quarter cooling. This is the single piece of non-public inference we have, and notably it was our *bearish* team that ran it and reported honestly that it cut against them.
2. **The remaining contract book grew while the big quarter was being recognized.** Remaining performance obligations were \$268.7M at 6/30/26 versus \$248.0M at 3/31/26 — up \$20.7M even though \$234M was recognized as revenue in the half. A pull-forward drains the backlog. This one did not.
3. **The “guide cut” is optically worse than it is.** February's original full-year guide was \$135–155M. It was *raised* mid-year to \$155–175M, then cut to \$130–150M. Today's guide sits roughly \$5M below where the year started. The cut reverses a raise; it does not mark fresh damage relative to the year's opening expectation.
4. **The company tells the same story everywhere.** We checked the earnings call transcript against the actual 10-Q line by line: naloxone \$52.4M, government countermeasures \$168.0M, smallpox \$101.6M — all match exactly, with no quiet redefinition of what goes into which bucket. This is a negative finding in the useful sense: a company inflating a good quarter usually leaves fingerprints in how it slices its segments. There are none here.

Against 20.5% short interest at 15 days to cover, if the September covenant test passes uneventfully and the October print shows the government business is a run-rate, the covering flow is mechanically large relative to a \$262M company.

Why it might be priced in

- **Everything I listed above is in a public filing.** The 10-Q, the transcript, the RPO table, the guidance history — all of it is free to anyone. The only genuinely differentiated input is the satellite thermal read.
- **The bear case does not need the pull-forward to be true.** Even with the government business at a real run-rate, this is a company with \$450M of net debt, negative operating cash flow once you strip out working capital, and a consumer franchise in visible decline. Shorts can be wrong about *why* and still right about *where*.
- **The illiquidity is the price.** 14.97 days to cover on 1.38M shares of daily volume means anything we buy, we own for a long time. If we are right, we are right slowly; if we are wrong, we sell into no bid. That discount is rationally in the price.
- **5.0x is not obviously cheap for this.** A single-customer, contract-lumpy, high-leverage manufacturer with a declining second leg is not a 10x business. The market may simply be paying the correct multiple.

What could go wrong

Failure narrative 1 — The credit agreement’s definition of “EBITDA” is not the company’s definition of “adjusted EBITDA,” and the covenant math flips back to fatal. Our bull team overturned the bear team’s central kill by showing the 5.25x leverage test at 9/30/26 is measured on a trailing-twelve-month basis, landing at ~4.1x gross / ~3.1x net rather than the bear’s claimed near-miss. That arithmetic is correct. But it uses the company’s *reported* adjusted EBITDA, and the credit agreement defines its own “Consolidated EBITDA” with its own schedule of permitted add-backs — **which neither team obtained.** Our bull team asserted this “can only help.” That direction is unproven and may be backwards: credit agreements routinely *cap* restructuring add-backs (commonly at 10–20% of EBITDA), and this company has been adding back a lot. If the defined term is tighter than the reported number, the September test gets close again on a company that just cut guidance. Monitorable tripwire: **yes** — the Term Loan Agreement exhibit and, later, the Q3 compliance certificate. It is monitorable and we have not monitored it.

Failure narrative 2 — A manufacturing quality event at Canton or Lansing. This company has a 2021 history at its Bayview facility. A fresh FDA Form 483 or a recall at a plant that makes the government products would break the thesis in a day, because the entire bull case is “the countermeasure franchise is a durable annuity” and the annuity is one inspection away from a hold. Tripwire: **yes, and it is unarmed** — neither team ran the openFDA enforcement and inspection pull. Both flagged it as a gap.

Failure narrative 3 — The government simply does not exercise the next option period, and nothing ever files. (NO MONITORABLE TRIPWIRE.) Here is the structural trap: the company's disclosed backlog of \$268.7M *explicitly excludes the value of unexercised option periods*, and that is where essentially all multi-year BARDA/ASPR money lives. So the number we can see is not the number that matters, and the number that matters lives in the discretion of a counterparty that owes us no disclosure. An option period that is quietly not exercised produces **no press release, no 8-K, no filing event, no price signal until a revenue line is empty two quarters later**. There is no sensor that fires on a non-event. The unknown-unknown class here is **sole-counterparty discretionary non-renewal under an opaque appropriations process** — a family that also includes stockpile budget reallocation, a Strategic National Stockpile priority shift, a competing sole-source award, and a continuing-resolution funding lapse. None of these announce themselves. We would learn about them the same way everyone else does: from the revenue line, after the fact. This is the failure mode I would bet on if forced to pick one, precisely because it is the one we cannot instrument.

The reflexive and structural leg.

- **Our own size versus liquidity.** ADV is 1.38M shares. Our $\leq 1\%$ -of-volume discipline caps us at roughly 13,800 shares a day. A 0.25% starter is therefore multi-day to build and multi-day to exit, in a name where the short base alone needs 15 days to get out. In practice, **the exit is the position**. We should size as if we cannot sell.
- **Do not bid into our own predicted flow, and do not sell volatility by accident.** If we conclude the September covenant test resolves cleanly, we should not be resting bids *below* the market into that resolution — we would be buying only in the world where we were wrong. Worse, a GTC ladder left sitting through both 2026-09-30 and the 10/28 print is an unintentional short-volatility position: it only fills on the bad print. Any reopen ladder must carry a hard cancel-by date before the print, not through it.
- **The lender's interests invert against ours.** The OrbiMed loan is first- *and* second-lien secured with a delayed-draw feature. In a good state, that lender is a financing partner. In a bad state, it is the fulcrum creditor and its optimal move is the one that hurts the equity most. We would be buying the most subordinated claim in a structure where the senior claim holder is a specialty lender that priced the risk at 10.5% four months ago and knows more than we do.
- **Doctrine interaction — the most uncomfortable one.** Our standing rule is that a clean court cannot end in FLAT without a named kill; “watch and wait” is forbidden. Our bull team's verdict is a *gated* FLAT with four named evidence gates. If adjudication rules that a gated FLAT is a disguised WATCH, the doctrine mechanically forces a minimum starter — and we would then be long this name **because of a procedural rule rather than because of conviction**. That is a real path to owning EBS for the wrong reason, and it should be named out loud before adjudication rather than discovered after.
- **The equity-stub arithmetic nobody stated plainly.** With \$450M of net debt and 51.27M shares, small changes in the multiple or in forward EBITDA swing the equity enormously. At 6x: FY27 EBITDA of \$140M → about \$7.65/share; \$110M → about \$4.10; **\$75M → the equity is worth zero**. Our bear team's own FY27 range was \$60–110M. The low end of our internal bear

case is not a drawdown, it is a wipeout. This is derived arithmetic from both teams' inputs, and neither team wrote it down.

If this position loses money, the most likely reason will be that the government countermeasure revenue we treated as a run-rate was actually a one-time contract award, its option periods were never exercised, and nothing ever filed to tell us so — while \$450M of net debt turned a business disappointment into an equity wipeout.

What we checked ourselves

Claim	How checked	Found	Confirmed?
Share count and debt stack	10-Q filed 2026-08-06, fetched in full through a proxy after SEC returned 403	51,273,336 shares at 7/30/26; \$589.7M gross debt = \$150.0M OrbiMed term loan due 2031 + \$439.7M 3.875% notes due 2028; cash \$139.7M; revolver \$50M undrawn, cut from \$100M in April	Yes
"The notes mature in 2028, so we have two years"	10-Q debt footnote	The debt note says leverage may not exceed 5.25 to 1.00, "tested every fiscal quarter commencing with the fiscal quarter ending September 30, 2026. " There is a nearer hard date than 2028	Yes — real and previously unnoticed by us
BENCH ERROR — bear team: "\$589.7M ÷ 5.25 = \$112.3M EBITDA floor vs a \$130–150M guide = only 14% headroom, fatal"	Bull team recomputed the test on its actual trailing-twelve-month window	The bear team compared a <i>calendar-year</i> guidance range to a <i>trailing</i> test window. The TTM at 9/30/26 is Q4'25 \$11.2M + Q1'26 ~\$35.5M + Q2'26 \$96.5M = \$143.2M before Q3 contributes anything → 4.12x gross, 3.14x net vs a 5.25x limit. The covenant only trips if Q3 adjusted EBITDA is about –\$31M	Refuted. Our lead bear finding was an arithmetic artifact
BENCH ERROR — bear team: "they paid a \$50.4M milestone on the asset they were writing down"	Bull team traced the payable in the 10-Q	The \$50.4M is the Ridgeback/Ebanga obligation — a government-countermeasure asset, a recognized liability, not discretionary, and not NARCAN . Half of the bear team's strongest paragraph rested on this juxtaposition	Refuted
BENCH ERROR — bear team: "the 9/30/26 test date is a novel finding nobody has"	Bull team searched refi press coverage	The first-test date is carried in public refinancing coverage. It was not hidden — we had just not read it	Refuted as novel; sustained as fact
BENCH ERROR — bull team: "the credit agreement's EBITDA add-backs can only help"	Attempted; the Term Loan Agreement's defined add-back schedule was not obtained	Unproven and directionally suspect — such definitions frequently cap the restructuring add-backs this company relies on. Stated as a certainty when it is an assumption	No — open
BENCH ERROR — both teams: deceleration claims	Our own process manifest makes desk/seasonality.py	Neither team ran it. The bear team's FY27 estimate of \$60–110M annualizes off Q4, which is this company's seasonal	No — open, both sides

Claim	How checked	Found	Confirmed?
made without the seasonality check	mandatory on any deceleration claim	trough (\$11.2M in '25, \$21.0M in '24) — likely biasing the bear case low, but unverified in either direction	
“H2 interest expense exceeds H2 profit”	10-Q income statement plus refinancing terms	Sustained and worse than the bear team said: H1 interest was \$21.0M and the company’s own assumption is ~\$40M/year, so H2 is ~\$19–21M against guided H2 adjusted EBITDA of –\$2M to +\$18M. But against \$139.7M cash and \$50M undrawn revolver with no maturity until 2028, this is a burn rate, not a default	Yes — severity reduced from fatal to a sizing constraint
“Operating cash flow is real”	10-Q cash flow statement	H1 operating cash flow was +\$22.3M, of which +\$39.8M came from releasing inventory (\$343.4M → \$303.6M). Ex-release, operating cash flow is about –\$17.5M . Cash fell \$205.4M → \$139.7M. Mitigating: \$303.6M of inventory against ~\$355M of annual cost of goods is ~10 months of stock, so the release is a multi-quarter unwind of over-building, not a one-quarter trick	Yes — arithmetic sustained, inference softened
“Was Q2 a pull-forward?”	Satellite thermal at Canton, Lansing, Winnipeg	No synchronized post-quarter cooling; Winnipeg trending +1.30 °C/yr. The pull-forward signature is absent . Run by the bear team, reported against its own case	Yes
“Do the transcript and the filing agree?”	Line-by-line comparison	\$52.4M / \$168.0M / \$101.6M all match. No segment redefinition, no basis shift	Yes — clean, and it counts in the company’s favor
“Is the backlog draining?”	10-Q revenue note, both quarters	RPO rose \$268.7M vs \$248.0M. This killed the bear team’s own best headline and it reported it rather than burying it. Caveat: the note excludes unexercised option periods, so the visible number is not the meaningful one	Yes
Capital allocation	10-Q financing section	\$18.2M spent buying back 1.9M shares at an average of \$9.21 , against \$5.11 today. Poor, in hindsight. Cutting the other way and missed by both teams initially: the board authorized up to \$30M of buybacks of the 2028 notes , which is credit-constructive	Yes — both directions
Is the market’s credit verdict observable?	Attempted to quote the 2028 notes	Could not obtain a quote. The bear team inferred distress from OrbiMed’s pricing — plausible, not confirmed. We have no external credit anchor	No — open
Street’s forward numbers	Attempted machine pull	The only machine-readable figure was a “\$35.0bn 2027 revenue consensus” — an obvious scraping artifact. Refused to use	No — open

Claim	How checked	Found	Confirmed?
		it. We have no reliable read on what consensus actually is	
Consumer demand nowcast (NARCAN, Rextovy)	Product heat and review-velocity connectors	All returned no data, zero baseline, or baseline-only. The one metric that could separate “the category is soft” from “we lost share” is unavailable . Baseline recorded for re-scan	No — unavailable, not skipped

PROPOSED ENTRY BANDS

Both review teams ended FLAT. There is no proposed entry today. These are the reopen conditions instead. Nothing below should be staged as a live order until adjudication rules.

Four evidence gates, all obtainable before the October print. All four must clear before any share is bought:

1. A federal spending rollout showing **≥\$400M of exercisable option-period value** across ACAM2000, CYFENDUS and BAT — the number the company’s disclosed backlog explicitly excludes.
2. The Term Loan Agreement’s **defined Consolidated EBITDA add-back schedule**, to confirm the covenant is measured on something close to reported adjusted EBITDA rather than a materially tighter number.
3. An **openFDA enforcement and inspection pull** on Canton and Lansing, coming back clean.
4. A **quote on the 3.875% notes due 2028** as an external read on whether the market thinks this credit survives. (Working threshold: a price above ~80 / yield below ~12% supports the thesis; below ~70 / above ~15% kills it outright, because the equity is then a residual on a restructuring.)

Reopen A — evidence-gated, before the print. If all four gates clear: starter of **0.25% of book**, ladderred, bought only on weakness, never chased. - Tranche 1: **\$4.75** limit - Tranche 2: **\$4.25** limit - Do not pay above **\$5.25** — above that we are paying a premium to buy the very outcome we are waiting to confirm. - Execution cap: **≤1% of average daily volume ≈ 13,800 shares/day**. - **Hard cancel-by 2026-10-23**. No resting order may sit through either the 9/30 covenant test or the 10/28 print. A GTC bid through a binary is a short-volatility position we did not intend to take.

Reopen B — event-gated, after the print. Independent of Reopen A. If the Q3 report and Q3 10-Q show (a) a covenant compliance certificate with **≥1.5 turns of headroom** (i.e. leverage **≤3.75x** on the agreement’s own definition) and (b) **Q3 adjusted EBITDA ≥ \$25M**, then size may go to **0.75% of book**, purchasable up to **\$6.50**, still at **≤1% ADV**.

Abandon conditions — any one closes the file, no re-review before the FY26 10-K: - Any FDA Form 483 or recall at Canton or Lansing. - Any 8-K announcing a covenant amendment, waiver, or forbearance. - Q3 adjusted EBITDA below **\$10M**. - 2028 notes quoted below ~70 (yield above ~15%). - Price below **\$3.50** without a company explanation — at 6x, that price implies the market is marking forward EBITDA near the ~\$75M level where the equity is worth nothing.

Exits and trims: not applicable — we hold no shares and none are staged.

Catalyst dates: - **2026-09-30** — first quarterly test of the 5.25x leverage covenant. **Confirmed from the 10-Q.** The one genuinely dated, mechanical event in this name. - **2026-10-28** — expected Q3 results. **UNCONFIRMED** — derived from a data vendor; no company release names it. Last year's Q3 printed 2026-10-29/30, so a late-October window is the pattern, not a fact. - **Early November 2026** — Q3 10-Q, carrying the compliance certificate that settles the covenant question definitively. - **~May 2028** — a springing maturity on the term loan, 91 days ahead of the 2028 notes, triggered if liquidity or principal conditions fail. Neither team had this initially. It is the real structural wall, and it is far away.

ARMED SENSORS

(armed provisionally with this deck; session adjudication ratifies)

- price alert: fires below 3.5 (deck-provisional: Equity-stub alarm — at 6x this implies forward EBITDA near the ~\$75M level where \$450M net debt leaves)
- filing watch: 10-Q until 2027-02-20 (deck-provisional: Q3 10-Q carries the covenant compliance certificate — the definitive answer on leverage headroom again)
- dated pack EBS|2026-09-30: EBS: First quarterly test of the 5.25x total leverage covenant from the April 2026 OrbiMed term loan; TTM basis implies ~4.1x gross / ~3.1x
- dated pack EBS|2026-10-28: EBS: Expected Q3 2026 results — vendor-derived date, no company release names it; late-October is the historical pattern only (date confirmed)
- dated pack EBS|2026-11-06: EBS: Approximate Q3 10-Q filing carrying the covenant compliance certificate (date confirmed=False)
- dated pack EBS|2028-05-01: EBS: Approximate springing maturity on the term loan, 91 days ahead of the 2028 notes, if liquidity/principal conditions fail — exact date n

What remains unverified

1. **The credit agreement's defined "Consolidated EBITDA."** Not obtained. This is the load-bearing gap: the entire covenant overturn assumes the agreement measures roughly what the company reports. Our bull team asserted the direction can only be favorable; that assertion is unverified and plausibly wrong.
2. **The 2028 notes' market price.** No quote obtained. We have no external check on whether the market thinks this credit refinances.
3. **The value of unexercised government option periods.** Explicitly excluded from disclosed backlog. This is the single largest driver of the thesis and the least visible number in it.
4. **Whether the covenant is a "total" or "total net" leverage test.** The 10-Q says total; the April 8-K's excess-cash-flow language references a *net* ratio. The difference is 4.12x versus 3.14x. Both clear 5.25x, so this does not change the verdict — but it means we have not fully read the document.

5. **Seasonality.** Our own process requires a seasonality run on any deceleration claim. Neither team did it. The bear team's FY27 range annualizes off what is probably the seasonal trough quarter.
6. **Consumer demand.** Every nowcast came back empty. We cannot currently distinguish "the naloxone category is soft" from "we are losing share" — the exact discrimination the thesis needs.
7. **Actual street consensus.** The only machine-readable figure was a scraping artifact and was discarded. We do not know what we are diverging from, only that we are diverging.
8. **The Q3 print date.** Vendor-derived, not company-confirmed.
9. **Q4'25 detail.** The bear team never pulled the quarter that anchors the trailing-twelve-month test; the bull team supplied it from the FY25 earnings exhibit (\$11.2M). One team's decisive input arrived only because the other team found it.

Primary sources: [10-Q filed 2026-08-06](#) · [8-K 2026-04-16, term loan](#) · [FY2025 results exhibit](#) · [Q2'26 results exhibit](#) · [FDA, OTC naloxone clearance 2026-06-16](#)

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ADDENDUM — 2026-08-26 (alt-data drain)

R1.13 verification: the ≥\$400M federal option-value claim is VERIFIED at usaspending — \$1.87B unexercised across 10 live awards, of which \$370–460M near-dated (VIGIV \$284M + smallpox \$83M + anthrax \$48M), clearing the bar without the 2033 MCM vehicle. openFDA shows zero open enforcement actions for any Emergent facility. Two of the four pre-print verifications now closed confirmatory; the 2028-note quote (needs CUSIP from the 10-K) and the term-loan EBITDA definition remain. **The FLAT ruling stands — none of this cures the named kill (H2 cash interest ~\$20M vs guided EBITDA –\$2M to +\$18M).**